

25STCV09825 25STCV09825

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV09825

ARMANDO

VALDES PENALOZA, et al. vs OLIVIA CASTANEDA, et al.

July

21, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT OLIVIA CASTANEDA'S MOTION TO COMPEL PLAINTIFF ARACELI MURRIETA

GARCIA'S RESPONSES TO DEFENDANT'S DEMAND FOR PRODUCTION OF DOCUMENTS, SET ONE, AND REQUEST FOR MONETARY

SANCTIONS.

RULING:

The Court grants the unopposed Motion.

On or before July 21, 2026, Plaintiff ARACELI MURRIETA GARCIA shall serve initial responses and produce documents, without objections, and in full compliance with the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to Defendant OLIVIA CASTANEDA's Requests for Production of Documents, Set One.

On or before that same date, Plaintiff ARACELI MURRIETA GARCIA shall pay discovery sanctions in the sum of \$810 to Defendant OLIVIA CASTANEDA, the Court finding the absence of substantial justification. (E.g., Code Civ. Proc., § 2023.030.)

Defendant to give notice.

I.

BACKGROUND

On April 2, 2025, ARMANDO VALDES PENALOZA and ARACELI MURRIETA GARCIA (Plaintiffs) filed a "Motor Vehicle" Form Complaint against OLIVIA CASTANEDA and RIGOBERTO CASTANEDA MENDEZ (Defendants). Plaintiffs allege that a vehicular accident occurred at Main Street near 42nd Street, Los Angeles, due to negligence causing damages including medical care.

On January 16, 2026, OLIVIA CASTANEDA (Defendant) filed the Motion to Compel Responses to Requests for Production of Documents, and for sanctions, because Plaintiff failed to serve any response, notwithstanding meeting and conferring.

There is no Opposition filed as to this matter.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., §§ 2030.290 [compelling initial interrogatory responses], 2031.300 [compelling initial document requests].) A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.)

III.

ANALYSIS

Defendant reports that Plaintiff failed to respond and responses to Requests for Documents are overdue.

“If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693.)

Here, no Opposition was filed to show any reason to deny the Motion sufficiently based upon untimely discovery responses. Additionally, substantial justification is not evidenced in any Opposition.

IV.

CONCLUSION

Therefore, the Court grants
the Motion, as specified herein.